

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

---

|                     |   |                     |
|---------------------|---|---------------------|
| IN THE MATTER OF:   | ) |                     |
|                     | ) | DIA NO. 98DPHSW002  |
|                     | ) |                     |
| BILLY WADE CLAYWELL | ) | FINDINGS OF FACT,   |
|                     | ) | CONCLUSIONS OF LAW, |
|                     | ) | DECISION AND ORDER  |

---

On January 13, 1998, the Iowa Board of Social Work Examiners (Board) denied the application of Billy Wade Claywell (Applicant) for a license to practice social work at the master's level. The Applicant appealed, and a Notice of Hearing was issued on February 5, 1998.

The hearing was held on April 14, 1998 at 1:45 p.m. in the fourth floor conference room, side 1, Lucas State Office Building, Des Moines, Iowa. The following members of the Board were present for the hearing: Bruce Buchanan, L.I.S.W., Chairperson; Richard Matland, L.I.S.W.; and Linda L. Sickels, Public Member. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, served as the presiding officer for the Board. The Applicant appeared in person and was not represented by counsel. The state was represented by Heather Adams, Assistant Attorney General. The hearing was tape recorded. The hearing was open to the public, pursuant to Iowa Code section 272C.6(1)(1997) and 645 IAC 280.206.

After hearing the testimony and examining the exhibits, the Board convened in closed executive session to deliberate their decision, pursuant to Iowa Code section 21.5(1)(f)(1997). The administrative law judge was instructed to prepare Findings of Fact, Conclusions of Law, Decision and Order, in accordance with the Board's deliberations.

THE RECORD

The record includes the Notice of Hearing, the testimony of the witness, the stipulated summary of evidence, and the following exhibits:

- State Exhibit A: Iowa Code section 154C.6
- State Exhibit B: Iowa Code section 154C.1
- State Exhibit C: Application for Licensure with attachments.

FINDINGS OF FACT

1. On September 11, 1997, the Applicant filed his application for licensure to practice as a social worker at the master's level.

The application was denied on January 13, 1998, and the Applicant appealed. (Testimony of Applicant; State Exhibit C)

2. The Applicant has been employed by First Resources in Sigourney, Iowa from August 1988 to the present. From 1988 to 1990, the Applicant performed bachelor level social work duties. From 1990 to 1995, the applicant was employed full time as a Family Therapist or as a Foster Care Caseworker. From September 1995 to February 1997, the applicant was employed as a Family Preservation Supervisor. In addition to the duties of the Family Preservation Supervisor, the Applicant performed the duties of a Family Therapist from September 1995 to February 1997. The positions of Family Preservation Supervisor and Family Therapist are relevant to the question of whether the Applicant was employed performing master level social work duties as of July 1, 1996. (Testimony of Applicant; State Exhibit C)

3. A licensed independent social worker, who is a colleague of the Applicant at First Resources, verified that he has social work experience at the master's level. (State Exhibit C)

4. The Applicant submitted written position descriptions with his application for licensure at the master's level.

a) The position description for Family Preservation Supervisor requires a bachelor's degree in social work or related field and a minimum of four years of full-time direct experience working with children and families in a treatment setting; or a master's degree in social work or related human services field and two years of full-time direct experience working with children and families in a treatment setting.

b) The position description for Family Preservation Supervisor describes the following major responsibilities: be available for referrals and perform intake duties, meet with assigned caseworkers to provide consultation and provide guidance and direction for treatment service, review all necessary treatment plans, reports, and service note documentation for each case, coordinate family preservation in-service training, manage the Family Assistance Fund, and perform duties of family preservation workers as required.

c) The position description for Family Therapist requires a bachelor degree in social work or a related field from an accredited four year college and a minimum of two years of full time experience in social work or related human service agency; or a M.A. in social work or related field from an accredited college or university.

d) The position description for Family Therapist describes the following relevant major responsibilities: provide

psychosocial therapy to an assigned caseload of families, provide diagnosis and evaluation services for families, provide psychosocial assessments for families, develop family treatment plans, and participate in interdisciplinary collaboration.

(Testimony of Applicant; State Exhibit C)

5. In his position of Family Preservation Supervisor, the Applicant provided supervision for both bachelor and master level social workers. (Testimony of Applicant)

6. Since February 1997, the Applicant has been employed as Director of Development, which is an administrative position within the same agency. It includes development of new programs, writing grants and completing RFP's, facilitating and coordinating fund raising efforts, and providing family therapy services. (Testimony of Applicant; State Exhibit C)

#### CONCLUSIONS OF LAW

In 1996, the Iowa legislature passed legislation mandating licensure for social workers in Iowa and specifying requirements for three levels of permanent licensure: bachelor social worker, master social worker, and independent social worker. Iowa Code section 154C.3. Requirements for licensure at the master level include possession of a master's or doctoral degree in social work and an examination. Iowa Code section 154C.3(1)(b)(1997).

However, the legislature also provided transitional or grand-parenting provisions for Applicants who have practiced social work for a certain period of time at a certain level. These transition provisions are found at Iowa Code section 154C.6 and allow exemptions from certain license requirements for qualified applicants who submit their applications prior to July 1, 1998. The Applicant has applied for licensure at the master level under these exemption provisions.

Iowa Code section 154C.6(2)(1997) provides, in relevant part:

2. *Master social worker.* An applicant for a license as a master social worker shall present evidence satisfactory to the board of any of the following:

...

c. That the applicant is employed performing master level social work duties as defined in section 154C.1; subsection 3, paragraph "b", as of July 1, 1996, and has four thousand hours of employment experience in the practice of social work as of July 1, 1998.

Iowa Code section 154C.1(3)(b) provides, in relevant part:

3. "Practice of social work" means the professional activity of licensees which is directed at enhancing or restoring people's capacity for social functioning, whether impaired by environmental, emotional, or physical factors, with particular attention to the person-in-situation configuration. The social work profession represents a body of knowledge requiring progressively more sophisticated analytic and intervention skills, and includes the application of psychosocial theory methods to individuals, couples, families, groups, and communities. The practice of social work does not include the making of a medical diagnosis, or the treatment of conditions or disorder of biological etiology which involve psychosocial aspects and conditions. The practice of social work for each of the categories of social work licensure includes the following:

a. Bachelor social worker provide psychosocial assessment and intervention through direct contact with clients or referral of clients to other qualified resources for assistance, including but not limited to performance of social histories, problem identification, establishment of goals and monitoring of progress, interviewing techniques, counseling, social work administration, supervision, evaluation, interdisciplinary consultation and collaboration and research of service delivery including development and implementation of organizational policies and procedures in program management.

b. Master social workers are qualified to perform the practice of bachelor social workers and provide psychosocial assessment, diagnosis, and treatment, including but not limited to performance of psychosocial histories, problem identification and evaluation of symptoms and behavior, assessment of psychosocial and behavioral strengths and weaknesses, effects of the environment on behavior, psychosocial therapy with individuals, couples, families, and groups, establishment of treatment goals and monitoring progress, differential treatment planning, and interdisciplinary consultation and collaboration.

The Applicant in this case had provided satisfactory proof of four thousand hours of employment in the practice of social work. The relevant issue before the Board was whether the Applicant was "employed performing master level social work duties as defined in section 154C.1, subsection 3, paragraph "b", as of July 1, 1996." By establishing the transitional provisions for licensure which allow qualified applicants an exemption from the requirements for permanent licensure found at Iowa Code section 154C.3, the legislature has given the Board discretion in reviewing the job duties performed by applicants and determining whether the

Applicant was, in fact, engaged in master level duties as of July 1, 1996.

The Applicant presented sufficient evidence to establish that he was employed performing master level social work duties as of July 1, 1996, as that term is defined by Iowa Code section 154C.1(3)(b). The Applicant has been employed by First Resources from 1988 to the present. From September 1995 to February 1997, the Applicant was employed as a Family Preservation Supervisor and was also performing the duties of a Family Therapist. These are the positions that are relevant to the determination of whether the Applicant was employed performing master level social work as of July 1, 1996.

First, the Board notes that the qualifications for a Family Preservation Supervisor include either a bachelor's degree in social work or related field and four years of full-time relevant experience or a master's degree in social work or a related field and two years of full-time relevant experience. The academic and experience qualifications for this position are consistent with master level work. A person holding a master's degree was required to have an additional two years of full-time experience. In addition, the Applicant testified that he supervised both bachelor and master level social workers. This also supports the conclusion that this was a master level position.

The academic qualifications for the Family Therapist are a master's degree in social work or related field or a bachelor's degree in social work or a related field and two years of full-time social work experience. While these academic qualifications alone do not establish this as a master level position, the written position descriptions establish that both the Family Preservation Supervisor and the Family Therapist positions require the performance of master level social work duties.

The major responsibilities listed in the written job descriptions for Family Preservation Supervisor and Family Therapist most closely fit the statutory definition of a master level social worker, and not that of a bachelor level social worker. While some of the duties of these positions could be performed by either a bachelor or master level social worker, psychosocial therapy and diagnosis are unique to the statutory definition of master social workers. Iowa Code section 154C.1(3)(b).

In addition, based upon the Applicant's responses to questions from the Board, it was apparent that he clearly understood the distinctions between counselling, a bachelor level duty, and therapy, a master level duty. The Applicant's knowledge base is consistent with that of a master level social worker. Although he does not utilize the DSM-IV in making diagnoses, the Applicant was able to discuss the DSM-IV and articulate the purpose behind it. Based

on this record, the Board is satisfied that the Applicant had been performing master level social work duties as of July 1, 1996.

DECISION AND ORDER

IT IS THEREFORE ORDERED, that the application for a license to practice social work at the master's level, filed by Billy Wade Claywell, pursuant to the transition provisions found at Iowa Code section 154C.6, is hereby GRANTED.

Dated this 30th day of April , 1998.



Bruce Buchanan, L.I.S.W.  
Chairperson  
Iowa Board of Social Work Examiners

cc: Heather Adams  
Assistant Attorney General

Any appeal to the district court from disciplinary action of the board or denial of license shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court. 645 IAC 280.208. The party who appeals a decision of the board to the district court shall pay the cost of the preparation of a transcript of the administrative hearing for the district court. 645 IAC 280.209.